

Judgment Sheet
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

....

Civil Revision No.940-D of 2006.

Muhammad Bakhsh (deceased) through L.Rs. & others

Versus

Jiwan Hayat & others

J U D G M E N T.

Date of hearing: 15.05.2025.

Petitioners by: Mr. Muhammad Shahzad Farid Langrial,
Advocate.

Respondents by: Mr. Muhammad Khalid Khan Sikhani,
Advocate.

AHMAD NADEEM ARSHAD, J. This Civil Revision is directed against the judgment and decree dated 25.01.2006 whereby the learned lower appellate Court while accepting the appeal of the respondents/plaintiffs set aside the judgment and decree dated 07.02.2005 of learned trial Court and consequently decreed their suit.

2. Relevant facts forming background of this revision petition are that the respondents/plaintiffs instituted a suit for declaration on 01.12.1993 to the effect that they are owners in possession of the property described in schedule *Alif* annexed to the extent of 95/576 share (5/24 of 19/24) and the petitioners/defendants have no concern whatsoever with the suit property and the entries in the revenue record to that extent are void having no effect upon their rights. The main assertion of the

respondents/plaintiffs in their suit was that the suit property originally belonged to one Usman alias Bagga s/o Mahmood who died (before pre-partition) prior to the death of his brother namely Ghulam Muhammad; that after the death of Usman the suit property was inherited to his widow namely Mst. Subhai as limited owner according to the custom prevailing at that time; that after the death of said Mst. Subhai, the property under her control being limited owner was reverted to original full owner namely Usman and being his brother Ghulam Muhammad was entitled to get 5/24 share from his inheritance; that through inheritance mutation No.6358 sanctioned after the demise of Mst. Subhai they being legal heirs of Ghulam Muhammad were illegally deprived from the legal share entitled by their predecessor. The suit was hotly contested by the petitioners/defendants with the assertion that Ghulam Muhammad had been died prior to the death of Usman, therefore, impugned mutation was rightly sanctioned and the respondents are not entitled for any share. Learned trial Court after full-fledged trial dismissed the suit vide judgment and decree dated 07.02.2005. Feeling aggrieved, the respondents/plaintiffs preferred an appeal which was allowed vide impugned judgment and decree dated 25.01.2006 and consequently the respondents' suit was decreed. Being dis-satisfied, the petitioners/defendants assailed the said judgment and decree through the instant civil revision.

3. I have heard the arguments of learned counsel for the parties at full length and also perused the record with their able assistance.

4. From the perusal of record it appears that the only point for determination is whether Usman alias Bagga s/o Mahmood died prior to the death of his brother namely Ghulam Muhammad or not. The learned trial Court in this regard framed issue No.4 in the following words:-

“4. *Whether Usman died in the life time of Ghulam Muhammad? OPP*”

5. The learned trial Court decided this issue against the respondents/plaintiffs by holding that in the inheritance mutation of Ghulam Muhammad (Exh.P-2) the date of his death was written as 02.01.1941, whereas in the inheritance mutation of Usman (Exh.P-3) his date of death was shown as 12.02.1941, therefore, it is established that Ghulam Muhammad died prior to the death of Usman. The learned appellate Court reversed the said findings in the light of admission made by the petitioners/defendants in earlier round of litigation.

6. There is no dispute to the effect that one Mahmood died leaving behind his two sons namely Ghulam Muhammad and Usman with the landed properties. It is also admitted fact that Usman contracted two marriages, one with Hoor and second with Mst. Subhai. Whereas, Ghulam Muhammad contracted marriage with Mst. Bharo. Mutation No.2650 (Exh.P-2) is with regard to inheritance of Ghulam Muhammad s/o Mahmood, which was sanctioned in favour of his widow namely Mst. Baharo. In column No.13 of said mutation, date of death of said Ghulam Muhammad was recorded as 02.01.1940. Mutation No.2651 (Exh.P-3) is with regard to inheritance of Usman s/o Mahmood which was sanctioned in favour of Mst. Subhai. In column No.13 of said mutation, date of death of Usman is written as 12.02.1941. Exh.P-2 was incorporated on

21.02.1941, whereas Exh.P-3 was incorporated on 22.02.1941. It means that both the mutations were entered with a difference of one day. Both mutations were attested on the same day i.e. 19.03.1941. It is also evident that both the mutations were sanctioned in favour of the widows as limited owner.

7. Perusal of both the mutations it appears that the concerned Patwari entered the said mutations on the information provided by one of the relatives namely Haider. Said Haider was not produced in the witness box. No other evidence was brought on record with regard to the date of death of Ghulam Muhammad and Usman. Presumption of truth and correctness is not attached to the entries made in the mutation. In order to prove these entries strong and unimpeachable evidence is required. Entering a mutation or reporting factum of acquisition of any right in an estate to Patwari is mere ministerial act, which would not confer or extinguish any right in property. Under section 42 of Land Revenue Act, 1967, no witnesses or respectables are required either to accompany the person reporting acquisition of such an interest to Patwari nor to witness the entering of a mutation in said connection. For reference “KHALIL AHMAD versus ABDUL JABBAR KHAN and others” (2005 SCMR 911), wherein it has been held as under:-

“We say with respect that entering a mutation or reporting the factum of acquisition of any right in an estate to the Patwari was a mere ministerial act, which did not confer or extinguish any right in any property and thus nothing really hinged on the same. As would be evident from section 42 of Land Revenue Act no witnesses or respectables were required either to accompany the person reporting acquisition of such an interest to the Patwari nor to witness the entering of a mutation in the said connection.”

8. The date of death mentioned in the mutations do not find corroboration through any other evidence. The entries in the mutation register by themselves are not conclusive evidence of the facts which they purport to record. Therefore, date of death mentioned in the said mutations entries have no any evidentiary value. Reliance is placed upon “KHIZRAT MUHAMMAD and others versus GHULAM MUHAMMAD and others” (PLD 1962 (W.P.) Lahore 492), whereby the learned Division Bench of this Court observed as under:-

“A copy of the inheritance mutation Exh.P-6 of Muhammad Khan’s estate was also produced on the record. This again has not been referred to by the Courts below and the learned counsel for the plaintiff-appellants pressed it on our attention as it contains, in Column No.3, the date of the death of Muhammad Khan as the 3rd of June 1950, mutabiq-kitab-e-chowkidar. We do not think this has any evidentiary value by itself, being a piece of second-hand evidence based on the chowkidar’s book which was not produced.”

9. With regard to inheritance of Ghulam Muhammad s/o Mahmood a suit for declaration titled as “Muhammad Yar etc. Vs. Mahmood etc.” was instituted on 22.03.1976 (Exh.P-9). Perusal of Para 11 of the said plaint it appears that the plaintiffs of said suit maintained that Umar, Ahmad sons of Bakhsh, Usman s/o Mahmod, Ali Muhammad s/o Mehmeed were died prior to the death of Ghulam Muhammad. The exact narration is as under:-

” 11۔ یہ کہ عمر۔ احمد پسران بخش ، عثمان ولد محمود ، علی محمد ولد حمید قبل از وفات غلام محمد فوت ہوچکے تھے“

In the said suit Haq Nawaz appeared as PW-1 (Exh.P-12) and deposed in his examination-in-chief as under:-

”محمود کے پسران عثمان اور غلام محمد تھے“
 ”میں نے غلام محمد مذکورہ بالا کو دیکھا تھا ۔ غلام محمد قیام پاکستان سے 10 سال قبل فوت ہوا تھا ۔ جب غلام محمد فوت ہوا تھا تو عمر ، احمد پسران بخش پہلے فوت ہوچکے تھے ۔ غلام محمد کے مرنے سے قبل اس کا بھائی عثمان بھی فوت ہوچکا تھا“

Noor Muhammad, one of the plaintiffs of said suit, appeared as PW-2 (Exh.P-12). He also maintained that Usman had been died prior to the death of Ghulam Muhammad. His exact deposition is as under:-

”محمود کے پسران عثمان اور غلام محمد تھے“
”عمر، احمد پسران بخش، عثمان ولد محمود، علی محمد ولد حمید، غلام محمد
متوفی کی فوتیگی سے قبل فوت ہوئے“

The said suit was partially decreed vide judgment (Exh.P-10) and decree (Exh.P-11) dated 18.01.1978. Through said judgment and decree the plaintiffs of said suit succeeded to get their share from the legacy of Ghulam Muhammad on the ground that Ghulam Muhammad died after the death of Usman. The plaintiffs of said suit are now defendants in the present suit. Noor Muhammad s/o Mahmood is arrayed as defendant No.11 in the present suit who is plaintiff No.7 in the said suit. Therefore, they are bound by their plaint and the statement of Noor Muhammad who represented all the plaintiffs of said suit and entered in the witness box on their behalf as PW-2.

10. Although admission of facts are only relevant and are not conclusive proof of the matters made through said admission. However, such admissions become conclusive and are binding on a party making them only if it amounts to a representation on a matter of fact made to the other party, who in consequence of such representation has altered its position. When admission is thus acted upon by the party to whom it is made, it operates as estoppel and becomes in a way conclusive, inasmuch as the party making it is not then permitted to show that the admission

was wrong. For reference “AHMAD KHAN versus RASUL SHAH and others” (PLD 1975 Supreme Court 311), wherein it is held as under:-

“Therefore, an admission which is wrong in point of fact or is made in ignorance of legal right, has no binding effect on the person making it. This is however, subject to two well recognized exceptions. First: such admissions become conclusive and are binding on a party making them only if it amounts to a representation on a matter of fact made to the other party, who in consequence of such representation has altered its position. When admission is thus acted upon by the party to whom it is made, it operates as estoppel and becomes in a way conclusive, inasmuch as the party making it is not then permitted to show that the admission was wrong. Such admission is really hit by rule of estoppel in section 115 of the Evidence Act, 1872.”

11. The controversy was arisen when Mst. Subhai passed away and her inheritance mutation No.6358 (Exh.P-6) was attested on 13.05.1987. In the said mutation legal heirs of Ghulam Muhammad were deprived.

12. Admittedly, Mst. Subhai was a limited owner. As per Section 3 of the West Pakistan Muslim Personal Law (Shariat) Application Act, 1962, limited interest of female holders terminates and in terms of Section 5 of the Act (ibid) on the termination of the limited estates, the property was to be considered as the ownership of the last full owner and should have devolved upon his legal *sharai* heirs alive at the time of his death and if anyone of such heir had died prior to the termination of the limited estate his heirs would get the share to which their predecessor would have been entitled if alive. Accordingly, the limited owners were also entitled to their *sharai* share whether alive or dead.

13. Therefore, after the death of Mst. Subhai the property inherited to her was reverted to original full owner namely Usman. In the light of above discussion it is evident that at the time of death of Usman his brother Ghulam Muhammad was alive. So he was entitled to get his

legal share from the legacy of his brother Usman. But as at the time of opening of said succession he had been died, hence his legal heirs are entitled to get same share as their predecessor Ghulam Muhammad was entitled.

14. The learned lower appellate Court keeping in view the facts and circumstances of the case reached to a just conclusion that the respondents/plaintiffs are entitled to get their legal share as per their entitlement and the inheritance mutation No.6358 dated 13.05.1987 (Exh.P-6) is required to be corrected/rectified.

15. Learned counsel for the petitioners/defendants has not been able to point out any illegality, material irregularity, misreading or non-reading of evidence and jurisdictional defect in the findings of learned lower appellate Court, which do not call for any interference by this Court while exercising its jurisdiction under Section 115 of the C.P.C.

16. Epitome of above discussion is that the instant civil revision having no substance/merit is **dismissed**. No order as to costs.

(AHMAD NADEEM ARSHAD)
JUDGE

Approved for Reporting

JUDGE

Announced in Open Court on _____.

JUDGE